

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAUNTEA AVENT,

Plaintiff

-against-

THE CITY OF NEW YORK; MAYOR ERIC ADAMS;
NYPD COMMISSIONER KEECHANT SEWELL; NYPD
CHIEF OF DEPARTMENT JEFFREY MADDREY; PO
WILLIAM GARCIA (BADGE NO. 5094, TAX NO.
950473); PO JOSHUA E. CONSEILLANT (BADGE NO.
18801, TAX NO. 974802); PO CHRISTOPHER T. MEYER
(BADGE NO. 18501, TAX NO. 975030); PO JOSEPH J.
JACOBSEN (BADGE NO. 23247, TAX NO. 962498); PO
BREANNA L. SUSA (BADGE NO. 4714, TAX NO.
972974); AND NEW YORK CITY POLICE
DEPARTMENT MEMBERS JOHN OR JANE DOE #1-10;

Defendants.
-----X

SUMMONS

Index No.:

Plaintiff designates KINGS
County as the place of trial.

KINGS COUNTY is the venue
for the present action, as it is
the location where a majority of
the acts giving rise to the
Complaint occurred.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy
of your Answer on the plaintiff's attorney within 20 days after the service of this Summons, or
within 30 days after service of this Summons is complete if this Summons is not personally
delivered to you within the State of New York.

In case of your failure to Answer this Summons, a judgment by default will be taken against you
for the relief demanded in the complaint, together with the interest, costs and/or disbursements of
this action.

Dated: July 18, 2024
Brooklyn, New York

KAISHIAN & MORTAZAVI LLC

Attorneys for Plaintiff

By: 
Maryanne K. Kaishian, Esq.

TO:
THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

MAYOR OF THE CITY OF NEW YORK ERIC ADAMS
100 Church Street
New York, NY 10007

NYPD COMMISSIONER KEECHANT SEWELL
(Former)
New York City Police Department
1 Police Plaza
New York, New York 10038

NYPD CHIEF OF DEPARTMENT JEFFREY MADDREY
New York City Police Department
1 Police Plaza
New York, New York 10038

PO WILLIAM GARCIA (BADGE No. 5094, TAX No. 950473)
NYPD 30th Precinct
451 W. 151st St.
New York, New York 10031

PO JOSHUA E. CONSEILLANT (BADGE No. 18801 TAX No. 974802)
NYPD Counterterrorism Unit
New York City Police Department
1 Police Plaza
New York, New York 10038

PO CHRISTOPHER T. MEYER (BADGE No. 18501 TAX No. 975030)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

PO JOSEPH J. JACOBSEN (BADGE No. 23247 TAX No. 962498)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

PO BREANNA L. SUSA (BADGE No. 4714 TAX No. 972974)
NYPD 75th Precinct
1000 Sutter Ave.
Brooklyn, New York 11208

SUPREME COURT FOR THE STATE OF NEW YORK
KINGS COUNTY

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972974); AND NEW YORK CITY POLICE
DEPARTMENT MEMBERS JOHN OR JANE DOE #1-10;

Defendants.

-----X

Case No.:

VERIFIED
COMPLAINT

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Plaintiff, Shauntea Avent, by her attorneys, KAISHIAN & MORTAZAVI LLC, by
MARYANNE K. KAISHIAN, ESQ., an attorney duly licensed to practice before the Courts of the
State of New York, hereby complains of Defendants as follows:

PRELIMINARY STATEMENT

1. On April 19, 2023, Defendant New York City Police Department (NYPD)
Members with the NYPD's 75th Precinct in Kings County injured Plaintiff, Shauntea Avent ("Ms.
Avent" or "Plaintiff"), then approximately eight (8) months pregnant, by assaulting and
excessively detaining, wrongfully searching, and otherwise violating Plaintiff's rights following a
traffic stop.

2. Ms. Avent now brings the instant case before this Court for, *inter alia*, unreasonable search and seizure, excessive force, and excessive detention.

PARTIES

3. Plaintiff, Shauntea Avent, is, and was at all relevant times, an adult lawful resident of Queens County in the City and State of New York.

4. At all relevant times mentioned herein, DEFENDANT CITY OF NEW YORK (“Defendant City” or “New York City”), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department (“NYPD”), and their employees.

5. Defendant Mayor of the City of New York ERIC ADAMS was at all times relevant to this Complaint the Mayor of New York City. As Mayor, Defendant Adams, at all relevant times, was an elected officer and the “chief executive officer of the city,” New York City Charter § 3, and had final authority to appoint and/or remove any NYPD employees and agent, including the New York City Police Commissioner. He is sued individually and in his official capacity.

6. Defendant NYPD Commissioner KEECHANT SEWELL was at all times relevant to this Complaint the Police Commissioner of the NYPD. As Police Commissioner, Defendant Sewell, personally and/or through her authorized delegates, at all relevant times had final authority to promulgate and implement administrative and managerial policies and procedures, including policies and procedures as to personnel hiring, training, supervision, and discipline with respect to NYPD officers’ performance of their duties, and constituted a City policymaker for whom the City is liable. She is sued individually and in her official capacity.

7. Defendant NYPD Officers WILLIAM GARCIA (BADGE No. 5094, TAX No. 950473); JOSHUA E. CONSEILLANT (Badge No. 18801 TAX No. 974802), CHRISTOPHER T. MEYER (Badge No. 18501, Tax ID 975030), JOSEPH J. JACOBSEN (Badge No. 23247, Tax ID 962498), and BREANNA L. SUSA (Badge No. 4714, Tax ID 972974), at all relevant times, were employed by the City of New York as police officers with the NYPD and were believed to be assigned to the NYPD's 75th Precinct in Kings County, except for William Garcia, who was assigned to the NYPD's 30th Precinct. These Defendants are sued individually and in their official capacity.

8. The true names and identities of DEFENDANT NYPD MEMBERS JOHN OR JANE DOE #1 – 10 are currently unknown to Plaintiff, and these Defendants are fictitiously assigned the name(s) "Defendant NYPD Does # 1 – 10" for the purposes of the instant Complaint. At all times hereinafter mentioned, Defendant NYPD Does # 1 – 10 were employed by the City of New York as members of the NYPD. These Defendants are sued individually and in their official capacity.

9. At least two Defendant NYPD Does # 1 – 10 were employed as supervisors within the NYPD and were responsible for day-to-day personnel and administrative decisions, implementing NYPD and Defendant City's policies, supervising and/or training NYPD police officers, including all named Defendants, and reporting the misconduct of their subordinates for disciplinary purposes. These Defendants are sued individually and in their official capacity.

10. At all times hereinafter mentioned, all individual Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

11. Each and every act and omission by the individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

12. The individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, on behalf of, and with the power and authority vested in them by Defendant City and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

13. All Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices, and/or customs complained of herein, and/or condoned, acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

14. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

15. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

16. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking

state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

17. Each individual Defendant is sued in her or his individual and official capacities.

JURISDICTION and CONDITIONS PRECEDENT

18. This matter is properly before the Supreme Court of New York State, Kings County, as a majority of the events complained of herein occurred in Kings County.

19. The damages sought in this matter exceed the damages recoverable in all lower courts.

20. Plaintiff timely served Notices of Claim on the municipal Defendant and complied with all conditions precedent to commencing an action under state law.

21. The damages amount sought by Plaintiff exceeds the jurisdiction of all lower courts.

22. Defendant City of New York conducted an examination of Ms. Avent pursuant to GML §50-H on October 9, 2023.

23. At least thirty days have elapsed since service of Plaintiff's Notices of Claim and adjustment and payment thereof has been neglected or refused.

24. This action was initiated within one year and ninety days of the accrual of all Plaintiff's claims pursuant to New York State law, and within three years of the accrual of all claims brought pursuant to New York City Admin. Code Title 8, Ch. 8 § 8-802, et seq., 42 U.S.C. § 1983, and Federal law.

STATEMENT OF FACTS

25. On or about April 19, 2023, at approximately 3:20 PM, at or near the intersection of Atlantic Ave. and New Jersey Ave., in Kings County, City and State of New York, Plaintiff

Shauntea Avent was the operator of a vehicle travelling on Atlantic Ave. in accordance with all traffic laws and regulations.

26. At the above approximate time and place, three NYPD Defendants, believed to include Defendants Joshua E. Conseillant (Badge No. 18801, Tax ID 974802), Joseph J. Jacobsen (Badge No. 23247, Tax No. 962498), and NYPD Doe # 1, who appeared to be an Asian male police officer in NYPD uniform, stopped Ms. Avent's vehicle without cause or justification. Ms. Avent obeyed all orders from Defendants and immediately stopped her vehicle.

27. Ms. Avent provided Defendants with her legal name, identification, insurance, and registration to these NYPD members.

28. The NYPD Defendants then informed Ms. Avent that she was the subject of a 2022 i-card for an alleged misdemeanor matter in New York County.

29. At least one individual among NYPD Defendants ordered Ms. Avent to exit the vehicle and Plaintiff complied.

30. At all times relevant to this Complaint, Ms. Avent complied with all lawful orders issued by NYPD Defendants.

31. NYPD Defendants, including Defendant Conseillant, searched Ms. Avent at the scene of this stop and determined she was not in possession of any weapons, nor was she alleged to have committed any crime at the time of her stop.

32. Nevertheless, Defendants Conseillant and Jacobsen roughly grabbed Ms. Avent's arms, causing her pain to Plaintiff's shoulders and arms.

33. Defendant Conseillant shoved Ms. Avent against the NYPD patrol car, causing pain to Ms. Avent's arm, shoulder, and stomach.

34. Defendants Conseillant, Jacobsen, and/or Doe # 1 applied overly tight metal handcuffs to Ms. Avent's wrists and overly tight shackles to Ms. Avent's ankles, which were swollen due to her pregnancy.

35. This caused pain and swelling to Ms. Avent's wrists and ankles, and Defendants refused to loosen and/or adjust these restraints despite Ms. Avent's requests.

36. Defendants transported Ms. Avent to the NYPD's 75th Precinct.

37. Present at the 75th Precinct were NYPD Defendants Consaillant, Christopher T. Meyer (Badge No. 18501, Tax No. 975030); Joseph J. Jacobsen (Badge No. 23247, Tax No. 962498), Breanna L. Susa (Badge No. 4714, Tax No. 972974), and NYPD Defendant Does # 1 – 10.

38. There, NYPD Defendants Does # 2-4, believed to be police officers assigned to the NYPD's 75th Precinct, searched Ms. Avent's person and property again on at least two additional occasions, without cause, and finding no contraband.

39. While in Defendants' custody, Ms. Avent repeatedly requested to place a phone call to arrange for childcare and after-school transportation for her children, ages fifteen (15), eight (8), and two (2), as she was on her way to pick up her children from school and daycare when she was arrested.

40. At approximately 4:00 PM, Ms. Avent again requested a phone call to arrange for childcare.

41. At this time, NYPD Defendant Doe # 5, a male NYPD member believed to be assigned to the 75th Precinct, handed Ms. Avent her phone and stated that she would be allowed to send emergency texts for this purpose.

42. However, NYPD Defendant Doe #6, a Black male with short hair, wearing plain clothes, and believed to be a NYPD Detective, witnessed this exchange, including NYPD Defendant Doe #5 granting Ms. Avent permission to utilize the phone, and demanded that Ms. Avent return the cell phone prior to making arrangements.

43. Ms. Avent pleaded with Defendant Doe # 6 that her children needed a caretaker, as no one knew Ms. Avent had been arrested or that she would not be able to pick up her children.

44. NYPD Defendant Doe # 6 responded, in sum and substance, “Fuck your kids.”

45. NYPD Defendant Doe # 7, who appeared to be an Asian male and is believed to be assigned to the NYPD’s 67th Precinct, further stated, in sum and substance, “Maybe [your kids] should be taken away from you anyway, since you’re a criminal.”

46. Then NYPD Defendant Doe # 6 forcibly yanked the phone from Ms. Avent’s hand, grabbed Ms. Avent’s breast and shoved Ms. Avent against a metal sink, causing her to strike her stomach.

47. Defendant Doe # 6 then forcibly grabbed Ms. Avent by the chest, causing a laceration and welt to her skin, and causing her additional pain and suffering.

48. These actions caused Ms. Avent serious pain, fear, humiliation, and distress.

49. At the time of her arrest, Ms. Avent suffered from gestational pre-diabetes, for which she was undergoing treatment and monitoring by an obstetrician, and required regular care.

50. NYPD Defendant Does’ conduct altogether to subjected Ms. Avent to new set of injuries and contributed to the worsening of her preexisting conditions.

51. As a result of such behavior exhibited by NYPD Defendant Does, Ms. Avent spent hours in a state of dizziness and nausea while suffering from continued and increasingly severe pain in her abdomen. Ms. Avent began to experience contractions.

52. Nevertheless, NYPD Defendant Does continually failed to provide Ms. Avent with food or water during her time in NYPD custody.

53. The NYPD Defendants denied and/or delayed Ms. Avent's medical care for approximately ten (10) hours, despite full knowledge of her medical needs, and despite Ms. Avent's repeated requests.

54. At approximately 1:30 AM on April 20, 2023, Ms. Avent was finally transported by EMS to Brookdale Hospital following significant delays and/or denial of care by Defendants.

55. After minimal medical treatment, Defendants transported Plaintiff back to the 75th Precinct at approximately 4:30 AM, where she awaited transport to Central Booking at 120 Schermerhorn St.

56. On April 20, 2023, at approximately 12:00 PM, Ms. Avent was arraigned on allegations of Vehicle and Traffic Law (V.T.L.) § 509 related to an unpaid traffic fine.

57. The matter was resolved with a non-criminal traffic infraction with an associated sentence of time served and a fine. Ms. Avent remained in NYPD custody.

58. Defendants then transported Ms. Avent to New York County, where she remained in an NYPD Precinct, believed to be the NYPD's 30th Precinct, for approximately five (5) hours in the custody of Defendants, including Defendant PO William Garcia (Badge No. 5094, Tax No. 950473), on charges related to the alleged 2022 misdemeanor i-card matter.

59. Ms. Avent was issued a Desk Appearance Ticket in this matter.

60. Prior to her scheduled appearance in court, the matter against Ms. Avent was dismissed.

61. Ms. Avent was released from NYPD custody at approximately 5:00 PM on April 20, 2023.

62. Ms. Avent, at eight (8) months pregnant, remained in NYPD custody for approximately twenty-seven (27) hours on allegations of an unpaid traffic ticket and a misdemeanor i-card.

63. At no time did any Defendants intervene in the unlawful or deficient conduct of their fellow NYPD Members.

Damages

64. Defendants' conduct caused Ms. Avent serious physical injuries, including pain and suffering, premature contractions, exacerbation of gestational pre-diabetes, a laceration to her chest, pregnancy complications, pain and reduced range of motion to her wrists, ankles, and shoulders, bruising to her face, wrists, and body, and additional physical damages.

65. Defendants' conduct and the resulting injuries further forced Ms. Avent, upon the order of her doctors, to immediately cease work and be placed on bed rest for the remainder of her pregnancy.

66. On the date these events took place, Ms. Avent was employed as a phlebotomist.

67. Ms. Avent suffered lost wages, negative workplace ramifications, and other damages as a result of Defendants' acts and omissions, including in assaulting Plaintiff and in unreasonably denying and/or delaying her necessary medical care.

68. Defendants' conduct further caused Ms. Avent serious psychological injuries, including emotional anguish, humiliation, anxiety, fear for her baby's life, fear for her children's wellbeing, post-traumatic stress, difficulty sleeping, fear of public spaces, fear of leaving her home, loss of enjoyment, and additional damages.

69. Defendants deprived Ms. Avent of her property, including a cellphone, and forced her to expend costs.

70. The full extent of Ms. Avent's physical and emotional injuries and damages are not yet known, and their effects are ongoing.

FIRST CLAIM FOR RELIEF

The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force, Regardless of Whether Such Force Is Used in Connection with a Search or Seizure Against Defendant City and NYPD Defendants Pursuant to New York City Administrative Code Title 8, Chapter 8 (§ 8-801, et seq.)

71. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

72. As described above, the Defendants violated Plaintiff's right to be free from "unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure."

73. Pursuant to NYC Admin. Code Title 8, Chapter 8, §§ 8-801 through 8-809 of the New York City Civil Rights Law, Plaintiff maintains a private right of action against the individual NYPD Defendants and their employer, Defendant City, for this conduct.

74. All NYPD Defendants, as employees of the Defendant City's police department, are "covered individuals" as defined in § 8-801 of this Chapter.

75. Pursuant to § 8-802, et seq., NYPD Defendants and their employer, including Defendant City, are liable to Plaintiff for the conduct described herein.

76. Pursuant to § 8-803, Plaintiff's claims under common law or pursuant to any other law or rule are not limited or abrogated by his invocation of this statute.

77. The remedies provided by this chapter are in addition to any other remedies that may be provided for under common law or pursuant to any other law or rule.

78. Pursuant to § 8-804, Defendants may not invoke the defense of qualified immunity to avoid liability for this cause of action.

79. Pursuant to § 8-806, Plaintiff is entitled to compensatory and punitive damages, attorney's fees and costs, and an order restraining the Defendants from engaging in further violative conduct.

SECOND CLAIM FOR RELIEF

Excessive Force

Against Defendants Joshua E. Conseillant, Jacobsen, Doe # 1, and Doe # 6 Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

80. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

81. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

82. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

83. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

Violations of Plaintiff's Due Process Rights

Against All Defendants Pursuant to 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution

84. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

85. Defendants City, Defendant Adams, and Defendant Sewell designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in seizing Plaintiff and subjected Plaintiff to the violations of her Due Process rights described elsewhere herein.

86. Defendants collectively and individually denied and/or frustrated Plaintiff's Due Process rights and deprived Plaintiff of liberty and property without due process of law.

87. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

88. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

FOURTH CLAIM FOR RELIEF

Municipal Liability

Against Defendants City, Adams, and Sewell Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978) for Defendants' Violations of Plaintiffs' Rights Under the First, Fourth, and Fourteenth Amendments to the US Constitution

89. Plaintiff hereby incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

90. The Policymaker Defendants above were responsible for implementing and enforcing policies and procedures on behalf of the Defendant City of New York.

91. The facts pleaded above describe the policies, practices, and customs Defendants subjected the Plaintiff to, including, but not limited to: policies of unlawful searches and seizures;

excessive uses of force; denial and/or delay of medical care; and unlawful street and/or vehicular stops, searches, and seizures.

92. Defendant City and its NYPD have a well-documented history of fostering and endorsing the conduct complained of herein within the Department more broadly.

93. Policymakers and supervisors within the NYPD have not only failed to discipline members credibly accused of conducting improper vehicular stops, uses of force, searches, and seizures but have repeatedly promoted these individuals to positions where their responsibilities include training and supervising newer members.

94. All of the wrongful acts or omissions complained of herein were carried out by the individual named and unnamed police officer defendants pursuant to:

- a. Formal policies, rules, and procedures of Defendant City;
- b. Actions and decisions by Defendant City's policymaking agents including, but not limited to, the Policymaker Defendants named above;
- c. Customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned, and/or enforced by Defendant City, Defendant Adams and Defendant Sewell, and other policymaking officials;
- d. Defendant City's deliberate indifference to Plaintiffs' rights secured by the First, Fourth, and Fourteenth Amendments of the United States Constitution, as evidenced by the City's failures, and the failures of the City's policymaking agents, to train, supervise, and discipline NYPD officers, despite full knowledge of the officers' wrongful acts, as described herein.

95. Accordingly, Plaintiff is entitled to the damages requested in this Complaint.

FIFTH CLAIM FOR RELIEF**Failure to Train and/or Supervise**

Against Defendants City, Adams, Sewell, and Supervisor Does Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

96. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

97. Defendant City, and its agents Defendants Adams and Sewell, failed to train and supervise the Defendant NYPD Members.

98. All individual Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Ms. Avent's injuries.

99. Defendants knew or should have known that Defendant NYPD Members were likely to violate the constitutional rights of individuals in their custody.

100. Defendants know that NYPD Members are certain to regularly encounter situations such as those described herein—including the police approach and/or arrest and/or search of civilians—through the course of their employment.

101. Defendants knew that there was a history of wrongful conduct in these scenarios by NYPD Members.

102. Defendants also knew that individual NYPD Defendants have a documented history of adverse credibility findings and/or abusive conduct against individuals they encountered during their employment.

103. Defendants further knew that training and/or supervision could ameliorate the potential harms of constitutional violations in these scenarios, including civil rights violations, coerced confessions, and physical and emotional injuries.

104. Nevertheless, Defendants failed to train its agents and/or employees regarding their conduct during the scenarios described herein and further failed to supervise its agents and/or employees when engaged in high-risk contact.

105. By failing to train and supervise Defendant NYPD Members, these Defendants exhibited a conscious disregard and/or deliberate indifference for the risks posed by NYPD members' conduct absent adequate training and supervision.

106. The harms suffered by Plaintiff are the direct result of Defendants' failures.

SIXTH CLAIM FOR RELIEF

Negligent Screening, Hiring, and Retention

Against Defendants City, Adams, Sewell, and Supervisor Does Pursuant to 42 U.S.C. § 1983 and Monell v. Department of Social Services, 436 U.S. 658 (1978)

107. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

108. All Defendants were employees and/or agents of Defendant City and were acting within the scope of their employment at the time of the conduct giving rise to Ms. Avent's injuries.

109. Defendants failed to adequately screen, hire, or retain employees in consideration employees' recognizable propensity for harm.

110. Such documented history of Defendants abusing their authority and/or otherwise causing harm to individuals subjected to interactions with police renders Defendants' conduct both predictable to and preventable by policymaker Defendants.

111. Rather than removing or disciplining NYPD members meaningfully to ensure their future compliance with the law, and signaling that such conduct would not be tolerated if engaged in by other NYPD members, policymaker Defendants have continued to employ and empower

such NYPD members to continue inflicting predictable harm on individuals they interact with, including Plaintiff.

112. Such conduct is so foreseeable as to rise to the level of deliberate indifference.

SEVENTH CLAIM FOR RELIEF

Failure to Intervene

Against All Defendants Pursuant to 42 U.S.C. § 1983

113. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

114. The Defendant City, by its agents, had a special duty to Plaintiff and possessed sufficient knowledge that inaction would lead to the harms suffered by Plaintiff.

115. Defendants witnessed and/or knew of the harmful conduct of fellow Defendants and merely observed and/or unreasonably ignored such conduct against Plaintiff.

116. At no time did any Defendants intervene in the deficient conduct of their colleagues or otherwise fulfill their specialized duty to protect Plaintiff.

117. Defendant City and its employees and/or agents breached the existing duty to protect Plaintiff, and such inaction enabled and/or facilitated and/or exacerbated the harms caused by Defendants' conduct and suffered by Plaintiff.

EIGHTH CLAIM FOR RELIEF

Equal Protection Violations

Against All Defendants Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fourteenth Amendment to the United States Constitution

118. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

119. As discussed elsewhere herein, Defendants City, Adams, and Sewell, designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in detaining Plaintiff thus subjected Plaintiff to the above-described violations of Plaintiff's Equal Protection rights.

120. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of her federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

121. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

NINTH CLAIM FOR RELIEF

Violations of New York State Law

Pursuant to the New York State Constitution and New York State Common Law

122. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

123. As a result of the conduct described herein, Plaintiff was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

124. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, cloaked with and/or invoking state power and/or authority.

125. As a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

I. Assault and Battery

126. Defendants committed assault within the meaning of New York common law against Plaintiffs by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

127. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

128. Defendants did thereby inflict assault and battery upon Plaintiff.

II. Violations of the New York State Constitution

129. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I §§ 11 (equal protection) and 12 (security against unreasonable searches and seizures) of the New York State Constitution.

130. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 11 and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

III. Negligence

131. Defendants owed a special duty to Plaintiff and breached this duty through their conduct described herein. Defendants' negligence in fulfilling their duty to Plaintiff resulted in Plaintiff's injuries and they are liable for this conduct and its resulting injuries.

IV. Negligent Infliction of Emotional Distress

132. Defendants owed Plaintiff a duty of care and breached this duty of care through the conduct described herein, directly causing the emotional harms, including post-traumatic stress, insomnia, depression, and ongoing anxiety and fear.

V. Intentional Infliction of Emotional Distress

133. By the actions described above, Defendants engaged in extreme and outrageous conduct.

134. Defendants intentionally caused Defendant's severe emotional distress and/or acted with a disregard for the substantial probability of causing the same.

135. Plaintiff suffered severe emotional distress as the direct result of Defendants' conduct, which was outside the bounds of decency.

VI. Excessive Detention

136. Defendants held Plaintiff in custody for an excessive period of time due to ill will, in an attempt to gather evidence to justify the arrest of Plaintiff, and/or to cause delay for delay's sake.

137. Plaintiff was conscious of her confinement by Defendants, and this confinement was undertaken without her consent.

VII. Negligent Hiring, Training, and Supervision

138. Upon information and belief, Defendant City supervised and trained the police officials described above and did so in a negligent manner resulting in the harms described.

139. At all times relevant herein, Defendants were employed by, and acting in the scope of their employment with, Defendant City. Defendant City should have known that Defendant NYPD Members had a propensity for the conduct causing Plaintiff's injuries.

140. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

X. Denial and/or Delay of Medical Care
Pursuant to New York State Civil Rights Law Article 3 § 28 (N.Y. Civ. § 28) as well as New York State Common and Constitutional Law

141. At the time of the incident giving rise to the instant Complaint, Plaintiff was in the custody of Defendants, who are each a “police officer, peace officer or other law enforcement representative or entity” within the meaning of the New York State Civil Rights Law.

142. As such, Defendants had a duty to provide assistance and treatment for Plaintiff’s medical needs.

143. Defendants abdicated their duties under this statute and failed to provide and/or delayed in providing medical care to Plaintiff.

144. Such denial and/or delay was unreasonable and caused the delay in Plaintiff’s treatment for a serious physical and/or emotional injury.

145. This failure resulted in serious injury and/or the exacerbation of Plaintiff’s injuries for which Defendants are liable.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

CONCLUSION AND DEMAND FOR JUDGMENT

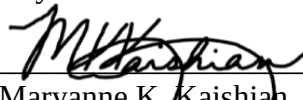
WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;

- iii. Policy change;
- iv. Statutory attorney's fees, disbursements, and costs of the action pursuant to, inter alia, 42 U.S.C. §1988, the New York City Admin. Code, Ch. 8, Title 8, and New York State common law; and
- v. Such other relief as the Court deems just and proper.

Dated: July 18, 2024
Brooklyn, New York

KAISHIAN & MORTAZAVI LLC
Attorneys for Plaintiff

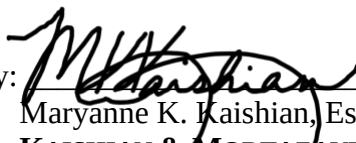
By: 
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ATTORNEY VERIFICATION

I, MARYANNE K. KAISHIAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true.
3. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.
4. I make this verification because Plaintiff does not reside in the County (Kings) where I maintain my office.

Dated: Brooklyn, New York
July 18, 2024

By: 
Maryanne K. Kaishian, Esq.
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